NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT-II)

C.A.(CAA)32/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

BETWEEN

GUPTA DYEFAB PRIVATE LIMITED

... Applicant No.1/Transferor Company

AND

SKYHIGH PROMOTERS PRIVATE LIMITED

... Applicant No.2/Transferor Company

WITH

HIGHRISE BUILDCON PRIVATE LIMITED

... Applicant No.3/Transferee Company

WITH

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 05.04.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Deepak Bansal, P.C.S

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)32/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies for approval of the Scheme of Amalgamation **("SCHEME").**

2. That Gupta Dyefab Private Limited **(the "Transferor Company No.1")** having CIN no. U17116DL2005PTC134339 is a private limited company incorporated under the Companies Act, 1956 on 23.03.2005. The registered office of the Transferor Company No.1 is situated at Chamber No.1517, 15th Floor, Devika Tower, 6, Nehru Place, New Delhi-110019.

3. That Skyhigh Promoters Private Limited **(the "Transferor Company No.2")** having CIN no. U45200DL2007PTC159586. is a company incorporated under the Companies Act, 1956 on 22.02.2007. The registered office of the Transferor Company No.2 is situated at S-524, Room No. 201, Agarawal Chambers, Shakarpur, Vikas Marg, New Delhi-110092.

4. That Highrise Buildcon Private Limited **(the "Transferee Company No.3")** having CIN no. U45200DL2007PTC158714 is a company incorporated under the Companies Act, 1956 on 02.02.2007. The registered office of the Transferee Company No.3 is situated at S-524, Room No.201, Agarawal Chambers, Shakarpur, Vikas Marg, New Delhi-110092.

5. That the present Petition has been jointly by all the Transferor and Transferee Companies. All the 'Transferor' and 'Transferee' Companies together are called 'Applicant Companies' hereinafter. That the Registered office of all the Applicant Companies are in Delhi and, therefore, the jurisdiction lies with this Tribunal.

6. It is seen that the Board of Directors of the Applicant Companies vide separate meetings held on 20.01.2021 have approved the Scheme of Amalgamation with 01.04.2020 as the 'Appointed Date'.

7. It is stated by the Applicant companies that the aforesaid scheme of amalgamation will result in :

> *"a) The amalgamating Transferor Companies and the Transferee Company will give the consolidated company better finances, facilitate adequate resource mobilization to sustain growth.*
>
> *b) Strengthening and consolidating the position of the Transferee Company and enabling it post-merger to participate more vigorously and profitably in an increasingly competitive and liberalized market.*
>
> *c) Enabling better leverage of facilities, infrastructure and human resources and for better administration.*
>
> *d) Augmenting and strengthening core business of the Transferee Company and resulting in its enhancement of the shareholder's value of Transferee Company..."*

8. That the Applicant Companies have averred in the Application accompanied by Affidavit at Para-81 on page-61 that there is no investigation or proceedings pending against any of the Applicant Company under the Companies Act 2013.

9. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting standards are in conformity with the provision of Section 133 of the Companies Act 2013.

10. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheet as on 31.03.2020.

11. That the position regarding the Applicant Company wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised below :

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
Gupta Dyefab Private Limited, Applicant No.1/ Transferor Company	4	100%	4	100% (in value)
Skyhigh Promoters Private Limited Applicant No.2/Transferor Company	4	100%	3	100% (in value)
Highrise Buildcon Private Limited Applicant No.3/ Transferee Company	8	100%	7	100% (in value)

12. That all the shareholders of the Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of all the Applicant Companies is dispensed with.

13. That the 100% in value of unsecured creditors in Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of all the Applicant Companies is dispensed with.

14. Since there are no Secured Creditors in any of the Applicants Companies, the requirement of convening their meeting does not arise.

15. **The Application is allowed in the aforesaid terms.**

Sd/-

(L. N. Gupta)
Member (T)

Sd/-

(Abni Ranjan Kumar Sinha)
Member (J)